

of sanctions under §128.5 or §128.7, the moving party must comply with a 21-day safe harbor. This requires service of a copy of the motion 21 days before it is filed, to afford the opposing party the opportunity to correct the issue. (Code Civ. Proc, §§ 128.5, subd. (f)(1)(B); 128.7, subd. (c)(1).) The safe harbor notice provisions must be strictly complied with. (*Galleria Plus, Inc. v. Hanmi Bank* (2009) 179 Cal.App.4th 535, 538.) Here, not only did Plaintiff not comply with the safe harbor provisions, but also the circumstances leading to the alleged late filing of the answer do not tantamount to bad faith conduct.

Finally, Plaintiff attributes certain quotes to published cases that do not appear in those cases and some of the cases he cites do not discuss the topics for which they are cited. “[N]o brief, pleading, motion, or any other paper filed in any court should contain any citations—whether provided by generative AI or any other source—that the attorney responsible for submitting the pleading has not personally read and verified.” (*Noland v. Land of the Free, L.P.* 114 Cal.App.5th 426, 431.) The Court notes Plaintiff is self-represented. Nonetheless, self-represented litigants are held to the same standards and considerations as attorneys and other litigants. (*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444; *Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543. ) The Court admonishes Plaintiff and cautions him that any future reference to and/or use of fake legal authority will subject him to monetary sanctions.

The Court finds it unnecessary to further analyze and address the parties’ remaining arguments. Based on the foregoing, Plaintiff’s motion to strike Defendants’ answer is GRANTED WITH LEAVE TO AMEND but his request for sanctions is DENIED.

#### **LINE 4**

Calendar Line 4

**Case Name:** *Dee Morgan v. The Terraces of Los Altos Senior Living, et al.*

**Case No.:** 25CV472651

Before the Court is Plaintiff Dee Morgan’s (“Plaintiff”) motion to strike portions of the Answer to the

Complaint filed by defendant The Terraces of Los Altos Senior Living (“Defendant”). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

## **I. BACKGROUND**

### **A. Factual**

This action arises out of an alleged breach of contract. According to the allegations of the operative Complaint filed by Plaintiff, on April 28, 2025, she and the defendants entered into a written agreement pursuant to which she provided petting zoo services at their facility. Plaintiff fully performed under the agreement, but the defendants failed to remit the agreed-upon payment to her, resulting in this action.

### **B. Procedural**

Based on the foregoing, Plaintiff initiated this action with the filing of the Complaint on August 14, 2025, asserting claims for: (1) breach of contract; (2) professional negligence; (3) intentional infliction of emotional distress; and (4) unlawful business practices.

On September 29, 2025, Plaintiff filed the instant motion to strike Defendant’s affirmative defenses in the Answer; the hearing on the motion was set for December 4, 2025. No opposition was filed. On December 3, 2025, the Court posted a tentative order denying Plaintiff’s motion on the ground that the notice of motion was not properly served. At the hearing the following day, Plaintiff appeared but Defendant did not. Plaintiff, who is self-represented, had not seen the tentative ruling, and the Court explained the tentative ruling process and that its tentative ruling was to deny the motion due to a lack of proof of service that Plaintiff had served her motion to strike. Plaintiff informed the Court that she did serve the defendants and filed a proof of service demonstrating as much on December 1, 2025. The Court was able to locate this proof of service and therefore continued

the motion so that the Court could further consider the merits.

At the continued hearing on January 6, 2026, Defendant claimed that it had never been served with the motion to strike and alleged that Plaintiff's proof of service filed with the Court was false. Plaintiff denied Defendant's allegation. Defendant requested a continuance to substantively respond to Plaintiff's motion to strike, which the Court granted. The Court also ordered Plaintiff to file and serve a declaration regarding the disputed service by January 16, 2026. On January 16, 2026, Defendant filed its opposition to Plaintiff's motion.

## **II. PLAINTIFF'S MOTION TO STRIKE**

### **A. Legal Standard**

A court may strike out any irrelevant, false, or improper matter asserted in a pleading. (Code Civ. Proc., § 436, subd. (a).) A court may also strike out all or any part of a pleading not filed in conformity with the laws of the State of California. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).)

Irrelevant matter includes "immaterial allegations." (Code Civ. Proc., § 431.10, subd. (c).) "An immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to the statement of a claim or defense; (2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense; (3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint." (Code Civ. Proc., § 431.10, subd. (b).)

"As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice." (Edmon & Karnow, *California Practice Guide: Civil Procedure Before Trial* (The Rutter Group 2024) ¶ 7:168, p. 7(l)-79 citing Code Civ.

Proc., § 437.) “Thus, for example, defendant cannot base a motion to strike the complaint on affidavits or declarations containing extrinsic evidence showing that the allegations are ‘false’ or ‘sham.’ Such challenges lie only if these defects appear on the face of the complaint, or from matters judicially noticeable.” (Id. at ¶ 7:169, p. 7(l)-79.)

“In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to the motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Super. Ct.* (1998) 67 Cal.App.4th 1253, 1255.) “In ruling on a motion to strike, courts do not read allegations in isolation.” (*Ibid.*)

## **B. Discussion**

Plaintiff moves to strike certain affirmative defenses in Defendant’s answer for various reasons. First, she moves to strike the defenses of failure to state a claim, waiver, estoppel, unclean hands and laches based on the allegations of those defenses being boiler plate and conclusory and lacking any supporting facts. Next, she argues that defenses such as “failure to state a cause of action” and “reservation of rights” are not proper defenses.

As this Court previously explained in its December 5, 2025 order continuing Plaintiff’s motion to strike, such a motion is generally *not* the proper vehicle to challenge an answer for failure to state sufficient facts to constitute a defense; rather, a demurrer is. (See Code Civ. Proc., §§ 430.20 and 430.30.) While Plaintiff is self-represented, such individuals are not entitled to special treatment regarding the Rules of Court or Code of Civil Procedure. (See *Stein v. Hassen* (1973) 34 Cal. App. 3d 294, 303 [“we cannot disregard the applicable principles of law and accord defendant any special treatment because he instead elected to proceed in propria persona.”].) Self-represented litigants “are held to the same standards as attorneys” and must comply with the rules of civil procedure. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543; see also *County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444; *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.)

Despite the foregoing, this Court also noted in the December 5<sup>th</sup> order that Plaintiff's motion appeared to raise "valid points regarding the insufficient support plead to support Defendant's affirmative defenses" and that it was "permitted to disregard form to focus on substance when a motion may be incorrectly named but the relief sought is otherwise clear." (Court's December 5<sup>th</sup> Order at 4, citing *Hudson v. Superior Court* (2017) 7 Cal.App.5th 999, 1011 [The law respects "form less than substance," and consequently, a trial court may disregard the caption of a motion and instead treat it in accordance with the relief it requests]; see also *Barrows v. American Motors Corp.* (1983) 144 Cal.App.3d 1, 9 [treating demurrer like motion for summary judgment due to nature of relief requested]; *A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1064 ["The substance of the 'motion to quash' is what mattered, not its label"].) Thus, the Court indicated its willingness to view and evaluate the merits of Plaintiff's motion as a demurrer rather than a motion to strike.

Turning to those merits, an answer may contain a "general ... denial of material allegations of the complaint controverted by the defendant." (Code Civ. Proc., § 431.30, subd. (b)(1).) The effect of a general denial is to "put into issue the material allegations of the complaint." (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 383 (*FPI*).) The answer must also contain "[a] statement of any new matter constituting a defense." (Code Civ. Proc., § 431.30, subd. (b)(2).) A "new matter" is "any ground urged in avoidance of the complaint, i.e., some independent reason why plaintiff should be barred from recovery, even if everything alleged in the complaint was true." (*Walsh v. West Valley Mission Comm. College Dist.* (1998) 66 Cal.App.4th 1532, 1546.) An affirmative defense presents such "new matter" and must be *specifically* pleaded in the answer or evidence of such grounds will be inadmissible at trial. (*Id.*; see also *Adeventec Group, Inc. v. Edwin's Plumbing Co., Inc.* (2007) 153 Cal.App.4th 621, 627.)

Plaintiff urges that the defenses of failure to state a claim (first), waiver (twelfth), estoppel (thirteenth), unclean hands (fourth) and laches (third) are insufficiently pleaded in the Complaint because they are not pleaded with any specificity. In its opposition, Defendant insists that its

affirmative defenses are adequate because those defenses, coupled with the allegations contained in the Complaint, “clearly give Plaintiff adequate notice of Defendant’s contentions as they relate to Plaintiff’s own Complaint.” (Opp. at 5:24-26.) The Court disagrees.

Defendant notably offers no authority which counters that which provides that affirmative defenses must be *specifically* pleaded. All of the allegations in support of the first, third, fourth, twelfth and thirteenth affirmative defenses are proffered in the form of legal conclusions, rather than as facts “averred carefully and with as much detail as the facts which constitute the cause of action and alleged in the complaint.” (*FPI, supra*, 231 Cal.App.3d at 384.) As such, the Court agrees with Plaintiff that these affirmative defenses are inadequately pleaded. Defendant is granted leave to amend its answer to address this deficiency.

As for Plaintiff’s contention that the “failure to state a cause of action” and “reservation of rights” (twenty-second) defenses are not proper and thus must be stricken, she notably offers no authority in support of her contentions that these are “demurrer issues or improper placeholders.” The Court will not do Plaintiff’s work for her and thus will not grant her motion with respect to either defense on this basis.

To reiterate, despite how it is titled in the notice of motion, the Court treats the motion before it as a demurrer to the answer. In accordance with the foregoing, the demurrer is SUSTAINED IN PART and OVERRULED IN PART. The demurrer is SUSTAINED WITH 10 DAYS’ LEAVE TO AMEND as to the first, third, fourth, twelfth and thirteen affirmative defenses and otherwise OVERRULED.